

26PR00380 Matter of Lorraine D. Rollins Trust Agreement and First Restatement of the Frederick A. Rollins and Lorraine D. Rollins Revocable Trust

County: sonoma

Division: Probate

Hearing date: 2026-07-24

Motion: Verified Petition of Michael Gosselin Pursuant to Probate Code §§17200 and 15642 to: (1) Compel Complete Accounting; (2) Surcharge Trustee Sean Michael Gosselin for Breach of Trust; (3) Remove Trustee and Appoint Successor Trustee; (4) Impose Equitable Tracing and Constructive Trust; (5) Obtain Instructions Regarding Advances to Beneficiary; (6) Financial Elder Abuse (Welfare and Institutions Code §15600 et seq.); (7) Forfeiture of Benefits Under Probate Code §259; (8) Attorney's Fees and Costs

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Tentative Ruling: The matter is CONTINUED to November 13, 2026 at 9:30 a.m. in Department 63 for the reasons set forth below.

For every petition filed pursuant to Division 9 of the Probate Code, the petition must include a copy of the entire trust instrument(s) relevant to the action, including all amendments thereto, and all attachments, schedules, and exhibits. Sonoma County Local Rule 6.8(A). The petitioner failed to comply with this requirement. The Lorraine D. Rollins Trust Agreement is attached to the trustee's response, so the Court is able to refer to that trust. However, the Frederick A. Rollins and Lorraine D. Rollins Revocable Trust is not provided in any of the papers. The petitioner is directed to file and serve a verified supplement at least seven (7) court days prior to the continued hearing that includes the Frederick A. Rollins and Lorraine D. Rollins Revocable Trust.

The petition does not state the names and addresses of the people entitled to notice, as required by California Probate Code §17201. Under Article V Section 3(c) of The Lorraine D. Rollins Trust Agreement, the settlor's grandchildren are the beneficiaries, but the grandchildren are not defined in the trust. Without the California Probate Code §17201 allegation, the Court has no basis to determine that all necessary people have been served. Therefore, the petitioner is directed to file and serve, at least seven (7) court days before the continued hearing, a list of the names and addresses of the people entitled to notice, as required by California Probate Code §17201.

As for the temporary orders requested by the petitioner, they are all DENIED without prejudice at this time. The Court does not find that suspension is warranted pursuant to Prob C §15642(e). The facts that would support suspension are disputed, and the response raises credible disputes as to the facts that would support suspension. As for the property taxes, the respondent indicates that they have been paid. If the petitioner wishes to obtain a mandatory preliminary injunction requiring

payment of the property taxes, this must be raised by a motion for a preliminary injunction. The same can be said for the request to enjoin any transfer of trust funds.

As this is now a contested matter, the parties are ordered to meet and confer in compliance with local rule 6.2(F)(2) and file statements of issues in compliance with local rule 6.2(F)(3) at least seven (7) court days in advance of the continued hearing.